



Selling It Right

B.C.'s Responsible Cannabis Service Program

July 2024

Copyright © 2023, Province of British Columbia. All rights reserved.

These materials are owned, and/or are used under licence, by the Government of the Province of British Columbia (the “Province”) and are protected by copyright law. No part of these materials may be reproduced or redistributed without the prior written permission of the copyright owner.

To request permission to reproduce all or any part of these materials, please contact the Province’s **Intellectual Property Program** at: QIPPCopyright@gov.bc.ca or by phone at: 250-216-8935.

These materials are intended to be used only for general informational and educational purposes and may not apply to all situations. These materials do not constitute legal advice nor are they a comprehensive statement of the legal obligations that arise under the British Columbia *Cannabis Control and Licensing Act*, *Occupiers Liability Act*, or any other applicable laws or regulations.

These materials are provided “as is” without warranty of any kind, whether express or implied, including with respect to their accuracy, currency and completeness. The Province will not be liable to any person or business entity for any direct, indirect, special, incidental, consequential, or other damages arising from any use of or reliance upon these materials for any purpose.

As a result, when interpreting and applying the information contained in these materials, you are encouraged to seek specific advice from your professional advisors as appropriate in the circumstances.



Welcome to Selling It Right!

This manual and the Selling It Right program are designed to give you the knowledge and skills you need to sell cannabis responsibly. As you progress through this manual, think about situations you've encountered or can expect to encounter at work and how you might apply the knowledge and strategies described here.

It's critical that you read and understand all the material contained in this manual. To obtain your Selling It Right certificate, you must

- Pass an exam on this material
- Confirm that you've read and understood the material
- Declare that you completed the exam on your own and in good faith

Answering the questions and completing the activities throughout this manual will help you learn the material and understand the practical application for your work.

Responsible cannabis selling doesn't end with Selling It Right certification. You'll continue to develop your skills through practice and work experience—you could even seek out further training. Remember, Selling It Right certification must be renewed every two years.

B.C.'s Responsible Cannabis Service Program	1
Welcome to Selling It Right!	2
Module 1: Introduction	6
Introduction to Cannabis	7
What is Cannabis?	7
Why is Cannabis Regulated?	8
The Effects of Cannabis	9
Intoxication and Impairment.	13
Signs of Intoxication	13
Reducing the Risks.	15
Canada's Lower-Risk Cannabis Use Guidelines.	16
Review and Application.	18
Review Questions	18
Scenario	20
Reflection	20
Recap.	21
Module 2: Your Legal Responsibilities.	22
How is Cannabis Regulated?	23
Legal Requirements.	23
Sales	24
Cannabis Equivalencies	27
Cannabis Accessories	28
Gift Cards	28
Product	30

Illicit Cannabis	30
Cannabis Display, Storage and Disposal	31
Store Usage, Layout and Security.....	31
Security Requirements	33
Monitoring and Managing Patrons	33
Weapons and Criminal Activity	35
Documentation	35
Cannabis Register Tips.....	37
Compliance and Enforcement.....	37
Review and Application.....	38
Review Questions	38
Reflection	39
Recap	40
Module 3: Responsible Selling.....	41
Establishment Policies	42
Assessing Patrons	43
Assessing Intoxication	45
Preventing the Sale of Cannabis to Minors	45
ID Requirements in B.C.	46
Verifying ID	47
Preventing Others from Purchasing Cannabis for Minors	51
Asking a Patron to Leave	51
Recording Incidents.....	53

Review and Application.....	55
Review Questions	55
Scenario	57
Reflection	59
Recap.....	59
Appendix A: Answers to Module Questions.....	60
Appendix B:	
Establishment Policies	64
Appendix C: Enhanced Security Features of the	
British Columbia Driver’s Licence and Services Card.....	72
Appendix D:	
Incident Report Sample	73



Introduction



Introduction to Cannabis

This first module is all about the “why.” Were you wondering why you have to take this course? And why cannabis is even regulated in the first place? In Module 1, you’ll learn about the legal requirements for selling cannabis legally and responsibly—both for you and your cannabis store. You’ll find out the signs of intoxication and how to reduce the risks associated with cannabis use.

What is Cannabis?

If you’ve been hired to sell cannabis, you’re probably at least somewhat familiar with what cannabis is and how it works. Here’s a quick summary, though.

Cannabis is a plant that is used for both medical and non-medical purposes. It can be consumed in a number of ways, such as being smoked, vaporized, applied to the skin, cooked in food, or brewed into tea. Parts of the cannabis plant that may be consumed include the leaves, flowers and buds.

The cannabis plant contains a number of chemical compounds called cannabinoids that may affect the brain and other parts of the body’s nervous system. The most researched cannabinoid is delta-9-tetrahydrocannabinol (THC). THC is responsible for the intoxicating effects of cannabis, known as the “high.” THC has some therapeutic effects, but it can also have harmful effects. Harmful effects may be greater when the strength of THC is higher. Cannabidiol (CBD) is another type of cannabinoid. Unlike THC, CBD does not produce a high.

Some people may use cannabis for health purposes. However, the cannabis sold by BC Cannabis Stores and licensed cannabis stores is not authorized medical cannabis.



Authorized medical cannabis can only be obtained through Health Canada’s medical cannabis program.

Why is Cannabis Regulated?

Cannabis is regulated by the federal and provincial government to protect public safety and serve the public interest.

The purpose of legalizing and regulating cannabis is to

- Prevent youth from accessing cannabis
- Reduce crime related to the illegal cannabis market
- Give consumers access to safe, quality-controlled cannabis products¹

The federal *Cannabis Act* and the *Criminal Code of Canada* make it a serious crime to

- Sell or provide cannabis to young people
- Use young people to grow, distribute or sell cannabis
- Distribute or sell unregulated cannabis

British Columbia is also taking action to protect children and youth, promote public health, keep B.C.'s roads safe and ensure socially responsible economic development within the legal cannabis industry. B.C.'s regulations allow the province to issue fines or suspensions to cannabis stores that do not follow the rules.

People use cannabis for a variety of reasons and it affects everyone differently. It's difficult to predict exactly what a person will experience when trying cannabis. Effects will vary depending on the

- Form of cannabis consumed (e.g., dried cannabis, edible cannabis, etc.)
- Amount of cannabis consumed
- Amount of THC and CBD in the cannabis product consumed
- Ratio of CBD to THC in the product consumed
- Method of consumption (for example, smoking versus eating an edible cannabis product)
- User's age
- User's sex
- User's pre-existing medical conditions
- User's experience with cannabis

¹ The federal government protects people through a tightly regulated supply chain that includes mandatory testing for contaminants such as pesticides, mould, bacteria, and heavy metals. Testing also confirms amounts of THC and CBD. All cannabis products available through the Liquor Distribution Branch are approved by Health Canada, ensuring they are safe to use.

Health Canada recommends against the use of cannabis by anyone at risk of mental health problems, especially psychosis, schizophrenia, and problematic substance use.

The Effects of Cannabis

Short Term



People often use cannabis for the way it makes them feel. Using it may make them feel

- Intoxicated (“high”)
- Relaxed or sleepy
- Invigorated or creative
- Less chronic pain or nerve (neuropathic) pain
- Hungry so they may eat more
- Less nauseous, reducing vomiting

But it may also cause unwanted side effects, such as

- Impaired short-term memory and ability to concentrate
- Poor judgment and coordination
- Anxiety or paranoid thoughts
- Faster heart rate

Long Term



Long-term regular use of cannabis may lead to problems such as

- Trouble with learning, memory, and concentration—especially if regular heavy use begins in the teen years
- Lung problems from smoking cannabis
- Mental health problems like anxiety, depression, and psychosis—especially if the user has a personal or family history of these disorders or is using cannabis products that have high levels of THC
- Cannabis use disorder, where the user finds it hard to control their use and continues using cannabis despite harmful effects
- Cannabinoid hyperemesis syndrome (CHS), which includes severe nausea and vomiting that may be life-threatening

There are some situations in which consuming cannabis may be risky—in fact, the government has made consuming cannabis illegal under certain circumstances because of these risks. Based on their circumstances, who do you think should avoid consuming cannabis at this time?

Check your answer on p. 60—or just keep reading.



Cannabis use is risky and/or illegal in many situations.



Pregnant

Cannabis use is risky when pregnant or breastfeeding as it can be transferred to the baby in the womb or through breast milk, resulting in potential health problems that may impact the baby's development.

Underage

The human brain is not fully developed until around age 25, making children and young people especially vulnerable to the negative effects of cannabis. Frequent cannabis use that begins in adolescence and continues over time may increase the risk of harms to the brain, some of which may be permanent.



Alcohol



While the effects of cannabis vary widely from person to person, using alcohol and cannabis together may produce a more 'intensified' intoxication compared to using either substance on its own.



Using other drugs

According to Health Canada, the impairment of a person's thinking and decision-making skills may be greatly increased when cannabis is consumed with other drugs—legal or illegal—that affect the activity of the nervous system. Examples of some drugs to watch out for include opioids, sleeping pills, and other psychoactive drugs.

Operating a motor vehicle

Many people automatically associate impaired driving with alcohol, but cannabis consumption can also impair a driver's ability to safely operate a motor vehicle.

Cannabis use can reduce a driver's awareness of their surroundings and their ability to track moving objects (like other vehicles and pedestrians) and react quickly to changes in traffic. Using cannabis and alcohol together is also more dangerous than using just one or the other.



For this reason, it is illegal to consume cannabis or alcohol while driving and illegal to drive while impaired by any substance, including cannabis. Consequences for driving while impaired may include a temporary licence suspension, vehicle impoundment, or even criminal charges.



When a person decides to drive while impaired, they risk the health and safety of themselves and everyone around them.

Intoxication and Impairment

Intoxication is when a person's physical and mental abilities are reduced due to the consumption of cannabis, alcohol or other intoxicants. A person becomes intoxicated when they consume intoxicating substances faster than their body can process and get rid of them.

As intoxicants build up in the body, the activity of the brain, heart and lungs may slow down or speed up, impairing judgment and coordination, and lessening inhibitions. As a result, intoxicated persons can pose a danger to themselves and others.

This is why B.C. has laws against selling or supplying cannabis to a person who is intoxicated or shows signs of intoxication. In fact, such a person is not even allowed to be in the store. It's a way of protecting that person and others around them. You'll learn more about these laws in Module 2.

Signs of Intoxication

There is no single scientific measure that can tell you if a person is intoxicated, since intoxication is an observed state. To determine whether a person is intoxicated, assess their mental and physical state and compare that state and observed behaviour to how you believe a sober person would look and act in the same situation.

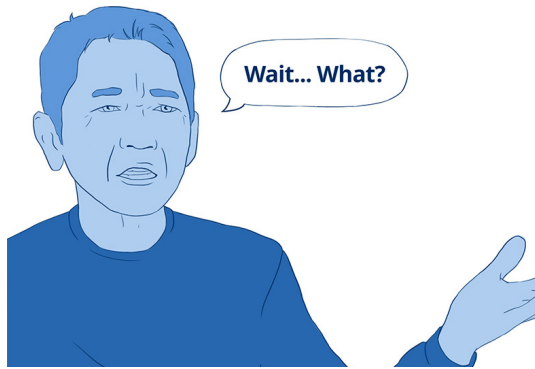
Some common signs of intoxication are listed below. Paying attention to patrons' physical appearance, attitude, speech and behaviour can help you decide whether or not it's okay to sell them cannabis. Always look for a combination of the signs of intoxication.

Some medical conditions and prescribed drugs can cause a person to appear intoxicated when they are not. If you are not sure whether someone is showing signs of intoxication, you may want to talk to your supervisor for guidance.



Physical Appearance

- Bloodshot, glassy, or watery eyes
- Large (dilated) pupils
- Droopy eyelids
- Blank stare or dazed look
- Twitching or body tremors



Speech

- Variations in volume
- Slurring
- Rambling
- Very slow or very fast speech rate
- One-word responses
- Not making sense



Attitude

- | | |
|---------------------|-----------------------|
| ◦ Argumentative | ◦ Rowdy |
| ◦ Aggressive | ◦ Depressed or sullen |
| ◦ Giddy or euphoric | ◦ Moody |
| ◦ Obnoxious or mean | ◦ Nervous |
| ◦ Overly friendly | ◦ Paranoid |



Behaviour

- | | |
|---------------------------------------|-----------------------------|
| ◦ Clumsy movements | ◦ Overly animated behaviour |
| ◦ Poor balance | ◦ Restlessness |
| ◦ Difficulty concentrating | ◦ Disorientation |
| ◦ Swaying, staggering or stumbling | ◦ Lack of eye contact |
| ◦ Spending carelessly | ◦ Grinding teeth |
| ◦ Extreme/sudden changes in behaviour | ◦ Vomiting |



Smelling like alcohol or cannabis

Reducing the Risks

There are many ways to reduce the risks associated with cannabis use. Are you familiar with any of them?

Choose the safer option for each question.

Check your answers on p. 60.

1. Which option is less risky?
 - a. Consuming cannabis products
 - b. Consuming cannabis products with alcohol
2. Assume that the equivalent amount is consumed for each of these options. Which option is less risky?
 - a. Smoking cannabis
 - b. Consuming edible cannabis products
3. Which option is less risky?
 - a. Beginning cannabis use at age 30
 - b. Beginning cannabis use at age 20
4. Which option is less risky?
 - a. Consuming cannabis daily
 - b. Consuming cannabis once a week
5. Which option is less risky?
 - a. Consuming cannabis with low levels of THC
 - b. Consuming cannabis with high levels of THC

Canada's Lower-Risk Cannabis Use Guidelines

Canada's Lower-Risk Cannabis Use Guidelines² include 10 recommendations for safer cannabis use that are endorsed by the federal government.

1. Remember that every form of cannabis use poses risks to your health.

The only way to completely avoid these risks is by choosing not to use cannabis. If you decide to use cannabis, follow these recommendations to lower risks to your health.

2. Wait until later in life to start using cannabis.

The earlier in life you begin using cannabis, the higher your risk of serious health problems. Teenagers, particularly those younger than 16, should delay using cannabis for as long as possible. You'll lower your risk of cannabis-related health problems if you choose to start using cannabis later in life.

3. If you use, choose low-strength products.

Higher-strength or more powerful cannabis products are worse for your health. If you use products with high THC content, you're more likely to develop severe problems, such as dependence or mental health problems. CBD may counteract some of THC's psychoactive effects. If you use, choose products with a lower THC content or a higher ratio of CBD to THC.

4. Don't use synthetic cannabis products.

Synthetic cannabis is illegal and not sold in cannabis stores.

Compared with natural cannabis products, most synthetic cannabis products are stronger and more dangerous. K2 and Spice are examples of synthetic cannabis products. Using these can lead to severe health problems, such as seizures, irregular heartbeat, hallucinations and in rare cases, death.

² Click the following link to view Canada's Lower-Risk Cannabis Use Guidelines in their entirety:

<https://www.camh.ca/-/media/files/pdfs---reports-and-books---research/canadas-lower-risk-guidelines-cannabis-pdf.pdf>

5. Choose non-smoking consumption options.

Smoking cannabis is the most harmful way of using cannabis because it directly affects your lungs. There are safer, non-smoking options like consuming edibles. Keep in mind that the alternatives aren't risk-free either.

6. If you smoke cannabis, don't inhale deeply or hold your breath.

These practices increase the amount of toxins absorbed by your lungs and the rest of your body and can lead to lung problems.

7. Limit your cannabis use.

The more frequently you use cannabis, the more likely you are to develop health problems, especially if you use on a daily or near-daily basis. Limiting your cannabis use to occasional use at most, such as only using once a week or on weekends, is a good way to reduce your health risks.

8. Don't operate a motor vehicle or other machinery after using cannabis.

Cannabis use impairs your ability to drive a car or operate other machinery. Don't engage in these activities after using cannabis or while you still feel affected by cannabis in any way. These effects typically last at least six to 24 hours, depending on the person and the product used. Using cannabis and alcohol together further increases your impairment. Avoid this combination before driving or operating machinery.

9. If you are likely to develop problems from cannabis use, avoid it.

Some people are more likely than others to develop problems from cannabis use. Specifically, people with a personal or family history of psychosis or substance use problems, and pregnant women should not use cannabis at all.

10. Avoid combining any of the risky behaviours described above.

The more risks you take, the greater the chances of harming your health as a result of cannabis use.

Review and Application

Review Questions

Question #1

Which of the following is a risk associated with long-term, frequent cannabis use?

Select all that apply.

- a. Lung problems from cannabis smoke
- b. Depression and anxiety
- c. Accelerated vision loss
- d. Impaired memory and decision-making skills

Question #2

Why is it best to delay cannabis use until age 25 or later?

Select the correct answer.

- a. Early cannabis use is likely to inhibit a person's growth.
- b. Early cannabis use carries a greater risk of skin conditions.
- c. Early cannabis use may disrupt brain development.
- d. Early cannabis use increases male fertility.

Question #3

How might cannabis consumption affect a person's ability to drive safely?

Select all that apply.

- a. By slowing response times
- b. By slowing heart rate
- c. By reducing awareness of surroundings
- d. By increasing ability to track moving objects

Question #4

Which of the following is a sign of intoxication?

Select all that apply.

- a. Swaying, staggering, or stumbling
- b. Very slow or very fast speech rate
- c. Bloodshot, glassy, or watery eyes
- d. Improved hand-eye coordination
- e. Overly friendly or aggressive behaviour

Question #5

If a person has decided to use cannabis, what can they do to reduce their risk of health problems?

Select all that apply.

- a. Use cannabis no more than once a week
- b. Choose products with lower THC concentrations
- c. Choose non-inhaled consumption options

Check your answers on p. 60.

Scenario

Tom is a staff member at a cannabis store. Petra, an inquisitive patron, enters the store and Tom goes over to greet her.

TOM: Hi there! How are you doing today?

PETRA: Not too bad, I suppose. I've been struggling with some insomnia though, and my friend suggested cannabis oil. She says it's more effective than melatonin. Do you think it will work for me?

Tom has a decision to make—what do you think he should say? First of all, cannabis affects everyone differently. It's difficult to predict what a person will experience when trying a product for the first time. Medical advice should only be given by health care providers.

TOM: That's a good question to ask your doctor. I'm not qualified to give out any medical advice.

PETRA: Fair enough. I've actually got an appointment with her next week, so I can talk to her about it then. But just out of curiosity, if I were to try this cannabis oil, do you think there would be any side effects?

TOM: Cannabis affects everyone differently, so it's impossible to predict what you might experience when trying a product for the first time. But it's best to start with a low amount of THC and wait to feel the effects before taking more.

PETRA: Start low, go slow...I think I've heard that before. Makes sense!

Tom made a great decision. His licence only allows him to sell cannabis for non-medical purposes, so he must be careful not to give out any medical advice or make health claims about a product.

Reflection

Here are some questions to ask yourself when you start working:

- Where do I go for information on cannabis products and sales? Do I know if it's a reliable source?
- Have my coworkers and I discussed how to identify intoxicated patrons?
- How does selling responsibly and following the law help reduce some of the risks associated with cannabis consumption?

Recap

Cannabis has some therapeutic effects, but it can also have harmful effects. When using cannabis, follow the guidelines to lessen the risk. It's important to sell cannabis legally and responsibly—both for you and your establishment.



Congratulations! You've reached the end of this module!



Your Legal Responsibilities



How is Cannabis Regulated?

In Module 1, you learned about some of the reasons why cannabis is regulated. In this module, you'll learn more about how it's regulated and your legal responsibilities when selling cannabis.

Canada's *Cannabis Act* and Cannabis Regulations create the federal legal framework for controlling the production, distribution, sale and possession of cannabis in Canada.

In addition, British Columbia's *Cannabis Control and Licensing Act*, the *Cannabis Distribution Act*, the Cannabis Licensing Regulation, and the Cannabis Control Regulation govern the retail sale of cannabis in B.C.

The acts and regulations aim to protect public health and safety by

- Outlining requirements for obtaining a cannabis store licence
- Establishing application processes and the role of local governments and Indigenous nations
- Mandating routine inspections of licensed cannabis stores to ensure compliance with applicable laws
- Establishing rules for the retail sale of cannabis

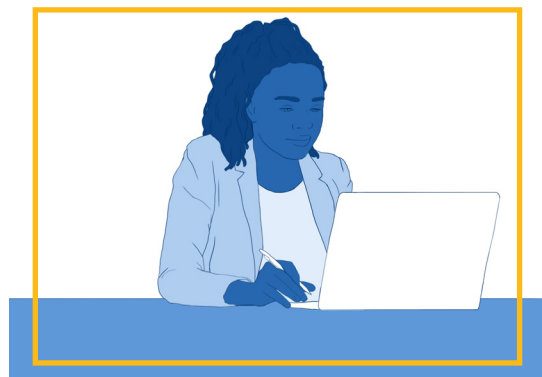
In addition to the acts and regulations, the Liquor and Cannabis Regulation Branch's Licensee Handbooks contain terms and conditions and important information about the rules and requirements for licensed cannabis stores in B.C.

Legal Requirements

Cannabis stores must meet all applicable requirements of

- B.C.'s *Cannabis Control & Licensing Act*, the *Cannabis Distribution Act* and federal *Cannabis Act*
- B.C.'s Cannabis Control Regulation and Cannabis Licensing Regulation and the federal Cannabis Regulations
- All other relevant rules (for example, municipal by-laws)

Licensees must also follow the terms and conditions of their licence, which are periodically updated. These are found in the Cannabis Retail Store Licensee Handbook and the Producer Retail Store Licensee Handbook on the Liquor and Cannabis Regulation Branch website.





The information in this module is provided to make you aware that those who sell cannabis have legal responsibilities to their patrons and to third parties. It is not intended to be a full explanation or to provide definitive advice about those legal responsibilities. Given the serious consequences that may arise if these responsibilities are not exercised properly, you may wish to seek further information from your employer or legal counsel.

The following information includes key legal requirements relating to the sale of cannabis, divided into these categories:

- Sales
- Cannabis products
- Store usage, layout and security
- Patrons
- Documentation

Sales



Licensees are only allowed to sell cannabis

- Within their physical retail store locations during operating hours; and
- Through an online system, or by telephone



Licensees may provide direct-to-consumer delivery services for cannabis products, as long as the following conditions are met:

- Only licensees, or employees of the licensee, delivery service providers or common carriers deliver cannabis products to patrons.
- Licensees, their employees and delivery persons must hold a valid Selling it Right certificate.
- Deliveries may only be made to an address in B.C. specified by the purchaser.
- Purchases for delivery are subject to the same individual transaction limits in place at cannabis stores – for example, a maximum of 30 grams of dried cannabis per transaction.
- The individual receiving the delivery must be an adult aged 19 or over. They must provide a name and signature at the time of delivery (the adult does not have to be a resident at the address or the individual who placed the order). If a name and signature are not provided, The order cannot be delivered.
- Those delivering cannabis must request two pieces of identification if there is any doubt that the person receiving the delivery is aged 19 or over.
- Licensees must ensure all cannabis products are transported securely during delivery.
- Licensees and their employees must carry a copy of the cannabis store licence as identification.

A licensee may sell cannabis, cannabis accessories and gift cards through an online system that is administered or operated:

- In whole or in part, by the licensee or a third party on behalf of the licensee; and
- In compliance with all laws, rules and requirements that apply to the licensee

A licensee's online system must have an age verification tool that restricts entry to adults only.



Cannabis must be sold in its original, unopened packaging, at a price no lower than the current Liquor Distribution Branch wholesale price. You are not permitted to give samples to patrons or the public.

Cannabis stores are only allowed to sell

- Cannabis purchased through the Liquor Distribution Branch from the BC Cannabis Wholesale warehouse or the Direct Delivery Program, including:
 - Dried cannabis
 - Cannabis plant seeds
 - Edible cannabis
 - Cannabis extracts
 - Cannabis topicals
 - Cannabis plants that are not budding or flowering
- Cannabis accessories used in the direct or indirect consumption of cannabis
- Cannabis-related items, which are items that have a clear link to cannabis— such as books about cannabis or apparel with cannabis motifs—but are not used directly or indirectly in the consumption of cannabis and are not consumable (such as food, drinks etc.)
- Gift cards
- Shopping bags
- Delivery Fees

Cannabis retail stores must not sell any items other than those listed above.

Cannabis Equivalencies

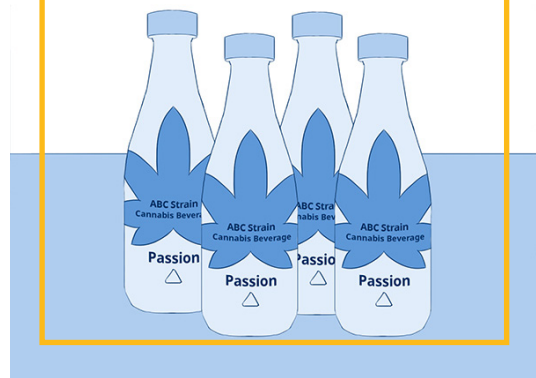
You must not sell more than 30 grams of dried cannabis or its equivalent to a patron in a single transaction, which is also the maximum amount of cannabis that a person can possess in public.

1 g of dried cannabis is equal to...

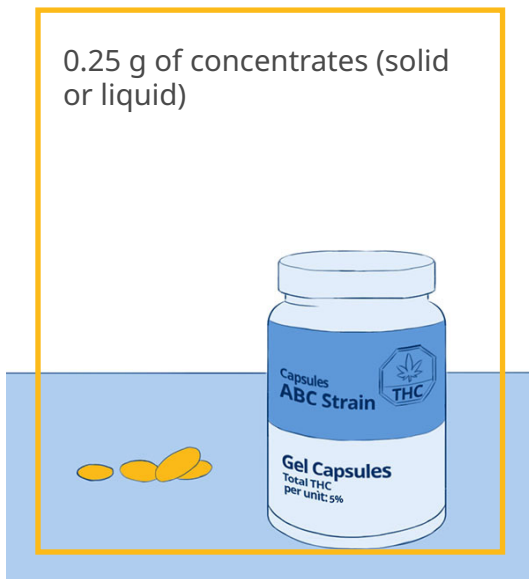
15 g of solids containing cannabis (for example, edible cannabis)



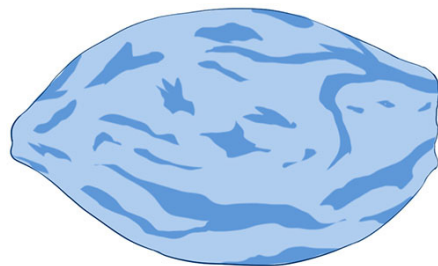
570 g of non-solids containing cannabis (for example, beverages)



0.25 g of concentrates (solid or liquid)



1 cannabis plant seed



Cannabis Accessories

Cannabis accessories are used in the directly or indirectly consumption of cannabis.

Examples of accessories used directly in consumption include:

- Rolling papers or wraps
- Holders
- Pipes/water pipes
- Bongs
- Vaporizers

Examples of accessories used indirectly in consumption include:

- Storage containers
- Grinders
- Gummy-making kits

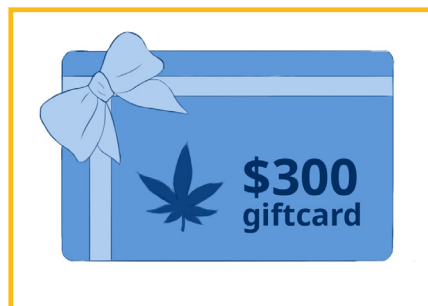
Items that are not related to consumption, such as apparel, magazines, or books are not cannabis accessories.

Cannabis-Related Items

Cannabis-related items are things that have a clear link to cannabis—such as books about cannabis or apparel or artwork featuring cannabis motifs—but are not used directly or indirectly in the consumption of cannabis (see ‘Cannabis Accessories’ above) and are not consumable (such as food, beverages (including liquor), tobacco, etc.).

Gift Cards

Cannabis stores may sell gift cards worth up to \$300 each that can be used at a licensed cannabis store or on a licensee’s online system. A cannabis store must not sell more than \$300 in gift cards to a patron on a single day.



You must not sell cannabis, cannabis accessories or gift cards to minors. If you think a patron could be under 19, request two pieces of valid ID to verify their age. You'll learn more about how to check ID in Module 3.

Time for a quick review. For the images below, decide whether it shows a sale that is allowed or prohibited within a single transaction to a patron of legal age who is not intoxicated.

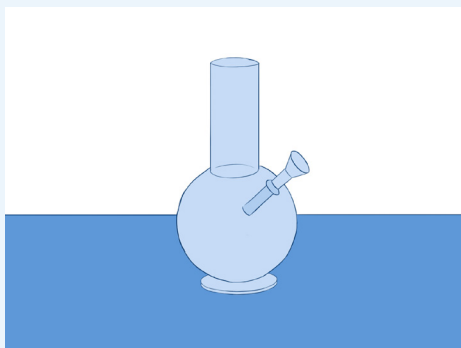
Check your answers on p. 61.



1. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited



2. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited



3. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited



4. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited

Cannabis Products



All cannabis products for sale in cannabis stores must be purchased through the Liquor Distribution Branch. Cannabis stores may purchase cannabis products from a licenced producer through LDB's direct delivery program if the purchase is registered against the cannabis store's licence.

Illicit Cannabis

Cannabis stores are allowed to sell a wide range of cannabis products—dried, seeds, edibles, extracts, topicals, and plants; however, there are laws about packaging, how much THC a product can contain, and more.

All cannabis products sold in a cannabis store, online or by telephone must come from the Liquor Distribution Branch (LDB). Products purchased through the LDB will have proper packaging, including display of an excise stamp on most products. These excise stamps must not be removed from the packaging, even if the packaging has been opened to fill or replenish smell jars or touch jars. If the excise stamps are removed, inspectors may be unable to verify that the products are lawful.

Selling cannabis products that were not purchased from the LDB may result in penalties. In fact, cannabis stores are not allowed to buy, keep, sell or give illicit cannabis to anyone and are accountable for any illicit cannabis found in their inventory.

If you become aware that a patron has brought illicit cannabis into the store, you must ask them to leave the store immediately. This must be reported in the incident records. (You'll learn more about incident records later!)

Cannabis Display, Storage and Disposal

There are laws about how to display, store and dispose of cannabis.



Cannabis products must be sold in the original unopened packaging. Smell jars and touch jars are an acceptable way to let patrons smell, view and touch the types of cannabis product available in a store. Smell jars must be physically attached to a display case or counter. Touch jars must not be accessible to patrons without employee assistance. Patrons must be assisted by a store employee at all times when touching cannabis.



Cannabis stock must be stored at the cannabis store, not off site. In addition to provincial security requirements, local governments and/or Indigenous nations may also have specific security requirements for cannabis stores. If cannabis is displayed or stored in the retail sales area, it must be kept in a lockable retail product case. Otherwise, it should be kept in a locked storage area. Any cannabis remaining in opened packaging for refilling smell jars and touch jars must be kept in a locked storage area.



It may be necessary to dispose of cannabis that cannot be sold, including cannabis from smell jars and touch jars. If the cannabis is being destroyed, it must be destroyed or denatured in a way that makes consumption improbable. For example, you could shred the cannabis product, add water to turn it to sludge and then throw in some cat litter to control the odour. The remaining cannabis waste can be composted or disposed of in a landfill if composting is not available or feasible. You must keep a record of cannabis disposal. This will be discussed later on.

Store Usage, Layout and Security



Cannabis stores cannot be used for any other purpose at any time. Games and entertainment are not allowed in the store.

A cannabis store must be located in a permanent building or structure. Cannabis and cannabis accessories must not be visible from outside the store. There are other rules, too. Do you know what's allowed and what isn't? You're about to see a series of images. For each one, decide whether you think it shows something that is allowed or prohibited.

Check your answers on p. 61.



1. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited



2. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited



3. Is this allowed or prohibited?
 - a. Allowed
 - b. Prohibited

Security Requirements

A cannabis store is required to have

- Audible intruder and fire alarm systems³
- Lockable retail product cases (if cannabis is to be displayed or stored in the retail sales area)
- A lockable cannabis storage area (for cannabis that will not be displayed or stored in the retail sales area, including cannabis in opened packaging to be used for smell jar or touch jar replenishment)
- Secure exterior door locks
- Security cameras⁴ with full, unobstructed views of
 - The retail sales area
 - Any cannabis and cannabis accessory storage area
 - The interior and exterior of all store entrances and exits

The security cameras must be recording at all times, even when the store is closed.

Monitoring and Managing Patrons



Licensees and staff are responsible for monitoring patrons' behaviour and taking action when necessary. **Cannabis must never be consumed in the store.**

³ These alarm systems must be monitored by a third party.

⁴ Cannabis stores must

- Store security camera footage for at least 30 days
- Post a written notice in the sales area that lets patrons know that video surveillance is being used
- Provide security camera footage to the Liquor and Cannabis Regulation Branch when requested for use in investigations and enforcement hearings

Cannabis store licensees must take reasonable measures to prevent disturbances in and around the store.

What are some examples of reasonable measures?

Some examples of reasonable measures include

- Installing adequate lighting outside the store and in the parking lot
- Supervising the parking areas
- Posting signs asking patrons not to disturb the neighbours

How can staff help to prevent disturbances?

Staff should greet patrons as they walk into the store and spend some time talking to them in order to assess their behaviour. A quick conversation can help identify patrons who should not be allowed in the store. You'll learn more about this in Module 3.

What are some examples of patrons who shouldn't be allowed in the store?

You must not allow minors or intoxicated persons to enter or remain in the store.

If a person has been asked to leave or has been barred from entering the store, that person must not return for at least 24 hours. If they do, you must notify a police officer as soon as it is safe to do so.

How will I know if a person has been previously asked to leave?

Any incident that negatively impacts patrons, staff, community members or the operation of the store must be recorded in the incident records. This allows for the sharing of information between staff members. Incident records may also be accessed by Liquor and Cannabis Regulation Branch inspectors or police officers.

Weapons and Criminal Activity

Licensees and staff must ensure that no weapons are brought into the store without lawful excuse. Violent or disorderly conduct or any other type of unlawful activity must not be allowed to take place within the store. If you believe there may be a threat to anyone's safety, notify a police officer as soon as it is safe to do so and remember to write details of the incident in the store's incident records.

Documentation



You've probably figured out by now that anyone involved in the sale of cannabis must complete mandatory training—this course—and pass the exam that goes with it. Your training certificate is valid for two years. Cannabis stores must keep records of staff certificate numbers and expiration dates for at least six years from the time they were obtained.

There are various types of required documentation that must be readily available for inspection. Licensees should know what records they are required to keep, and staff should know where to find these documents when requested by a Liquor and Cannabis Regulation Branch inspector or police officer.

Cannabis Register

A cannabis register is a record of all purchases and incoming transfers of cannabis inventory. Cannabis store licensees must keep a cannabis register, and these records must be available for inspection at all times. Cannabis registers may be hardcopy or digital. An inspector or police officer may look at the register and compare it to the stock to make sure the licensee has purchased the cannabis lawfully. Cannabis stores must be able to show where all the cannabis in their inventory came from.

The records in the cannabis register must be kept for at least six years.

Purchase and Sales Records

The following records must be kept for at least six years from the date of their creation:

- Purchase records for cannabis
- Sales records for cannabis (including the quantity sold and prices charged)
- Sales records for cannabis accessories and gift cards
- Records of any cannabis returned to the Liquor Distribution Branch

Smell Jar and Touch Jar Records

Licensees must keep records of the cannabis used in smell jars and touch jars, including:

- The unique excise tax identifier from the cannabis packaging
- The date of purchase for the cannabis (including the invoice number)
- The date that the original packaging was opened
- The amount of cannabis remaining in the opened packaging, if any
- The amount of cannabis taken from the opened packaging to replenish the smell jars and touch jars and a running balance of cannabis remaining in the opened packaging, if any

Note: The original packaging of the cannabis placed in a smell jar or touch jar must be available for inspection until the cannabis from that packaging has been disposed of.

Cannabis Disposal Records

The following information must be recorded regarding cannabis disposal:

- Date of disposal
- Type of cannabis disposed of
- Amount of cannabis disposed of
- How it was disposed of
- Where it was disposed of

Incident Records

As previously mentioned, any incident that negatively impacts patrons, staff, people who live or work nearby or the operation of the store must be recorded in the incident records. You'll learn more about how to properly record incidents in Module 3.

Licence and Floor Plans

Licensees must have their non-medical cannabis retail store licence posted prominently in the sales area of their store. Floor plans do not need to be posted, but they must be easily available as inspectors may request to see them.

Record-Keeping Tips

Here are some best practices for keeping a cannabis register:

- Keep all receipts and invoices in chronological order
- Separate the receipts and invoices for cannabis purchases from those for non-cannabis purchases
- Photocopy or scan receipts printed on thermal paper to protect the record from fading over time

Compliance and Enforcement

Cannabis stores must

- Follow all applicable rules⁵
- Always allow inspectors and/or police officers to enter the store
- Provide inspectors and/or police officers with any relevant documents⁶ and/or records requested
- Never draw attention to inspectors within the store, if doing so could jeopardize their safety

Failure to comply with legal requirements may result in enforcement action.

⁵ Licensees and their managers and staff should refer to the Cannabis Retail Store Licensee Handbook or the Producer Retail Store Licensee Handbook for more information on their legal responsibilities.

⁶ The relevant documents are outlined in the Licensee Handbooks for licensees.

Review and Application

Review Questions

Question #1

Which documents set out legal responsibilities of non-medical cannabis retail stores?

Select all that apply.

- a. Cannabis Control and Licensing Act
- b. Cannabis Control Regulation
- c. Cannabis Retail Store Licensee Handbook
- d. Producer Retail Store Licensee Handbook
- e. Criminal Code of Canada
- f. Cannabis Licensing Regulation

Question #2

Is the following statement true or false?

Patrons can sample cannabis within the store if the cannabis is taken out of smell jars.

Select the correct answer.

- a. True
- b. False

Question #3

How are open packages of cannabis (for smell jar replenishment) to be stored?

Select all that apply.

- a. Off site
- b. On site
- c. In a locked storage area
- d. In the retail sales area

Question #4

Which of the following statements are true regarding the sale of gift cards?

Select all that apply.

- a. Gift cards must not be sold to minors.
- b. Gift cards must be sold in denominations of no more than \$30.
- c. A patron cannot purchase more than \$300 in gift cards per day.
- d. Gift cards can be redeemed at any cannabis store within the province.

Question #5

What is the primary purpose of recording all cannabis purchases and incoming cannabis transfers in a cannabis register?

Select the correct answer.

- a. To help managers identify the best-selling products.
- b. To make sure that all cannabis on site is lawful.
- c. To give staff practice with record-keeping.
- d. To help the government develop better laws.

Check your answers on p. 62.

Reflection

Here are some questions to ask yourself when you start working:

- Do I know where to find the most current rules for selling cannabis?
- Do I know what documentation I am personally responsible for keeping?
- Do I know where to find the documents that may be requested for inspection?

Recap

Cannabis is regulated, and everyone who sells it must follow the legal requirements regarding sales, product, storage usage, layout and security, patrons, and documentation. Failure to comply with legal requirements may result in enforcement action.



Congratulations! You've reached the end of this module!



Responsible Selling



In Module 2, you learned about your legal and social responsibilities when it comes to selling cannabis. This module will tell you more about how to meet those responsibilities. You'll learn about establishment policies, when and how to assess patrons and how to verify ID to avoid selling to minors.

Sometimes selling cannabis responsibly means refusing a sale and asking a patron to leave. This module goes over some suggested strategies and procedures for how to do this, but every situation will be different. Be sure to modify procedures to fit the context.

Establishment Policies

An establishment policy is a document that contains the procedures and practical tactics to be used in different cannabis retail situations, such as verifying ID or asking someone to leave your store. Although establishment policies are not required by law, they can be very helpful when it comes to selling responsibly and meeting the legal obligations discussed in Module 2.

As an employee, you'll be responsible for reading, understanding and following any policies that your store may have. If you are a licensee or manager, you can check out the Establishment Policy resource included in this manual for helpful information on how to develop and implement an establishment policy for your store. To access this document, refer to [Appendix B.](#)



Assessing Patrons

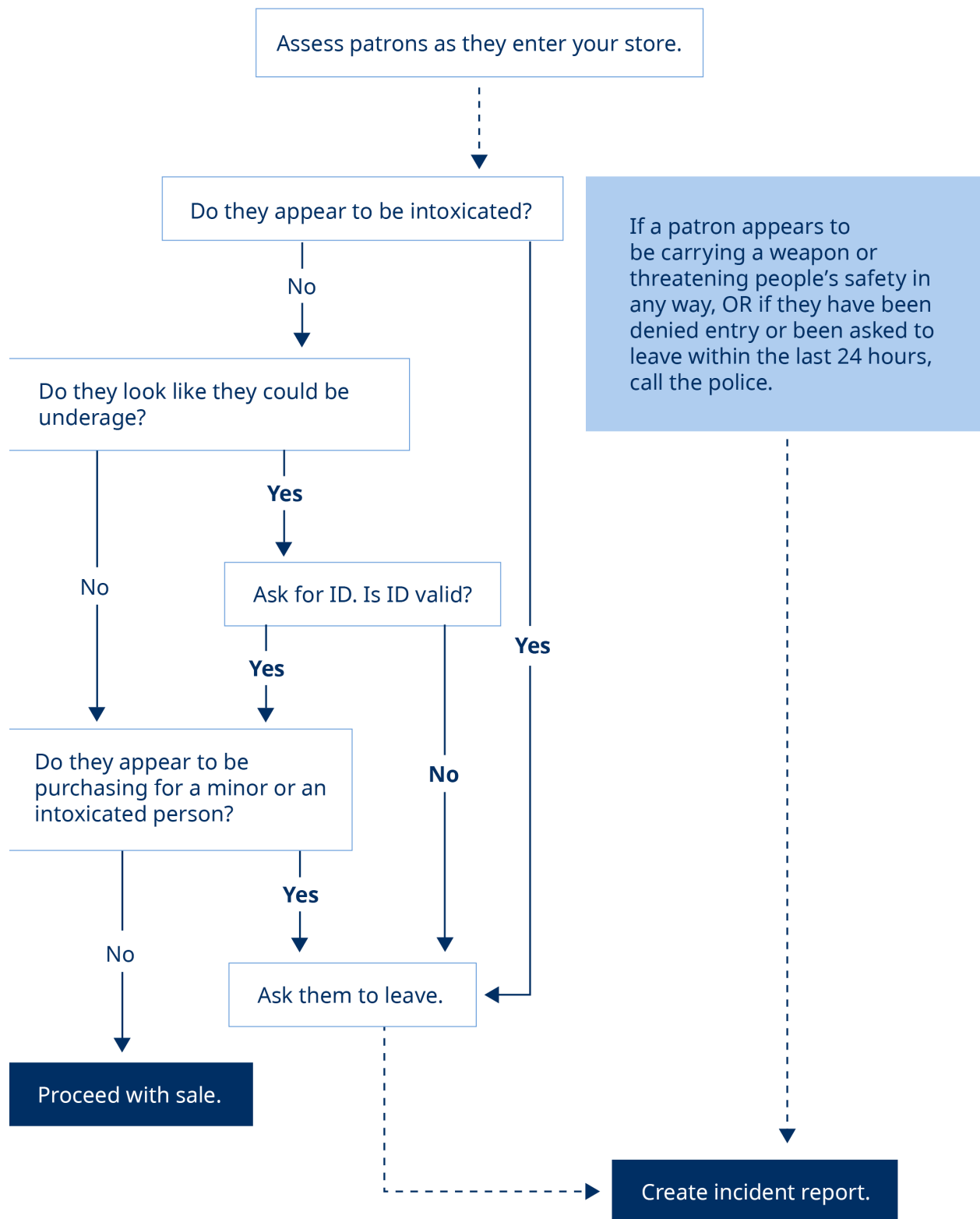
Greeting patrons when they enter your store and making small talk can help make patrons feel welcome and give you a sense of what products they are looking for. What else might you accomplish with this initial interaction?

Check your answers on p. 62.

Select all that apply.

- a. You can assess their age and decide if you need to see their ID
- b. You can predict how cannabis consumption will affect them
- c. You can check for signs of potential intoxication
- d. You can get a sense of whether they might pose a safety threat

Assessing patrons is necessary to determine whether or not you are allowed to sell to them. As you can see in the flowchart on the next page, your ability to make a legal sale will depend on getting the right answers to certain questions about the patron. Other answers will require you to refuse the sale and ask the patron to leave, then create an incident record. The remainder of this module will go through those questions and responses in more detail.



Assessing Intoxication

The first question in the flowchart asks whether the patron appears to be intoxicated. You should be looking for signs of intoxication from cannabis, alcohol, or some other substance or combination of substances.

In Module 1, you learned that intoxication is an observed state. To determine whether a person is intoxicated, you'll need to pay attention to their physical appearance, attitude, speech, and behaviour. Assess their mental and physical state and compare that state and observed behaviour to how you believe a sober person would look and act in the same situation.

Always look for a combination of signs. Remember, some medical conditions and prescribed drugs can cause a person to appear intoxicated when they are not. If you're not sure whether someone is intoxicated, you may want to talk to your supervisor for guidance.

If you are convinced that a patron is intoxicated, you can't let them stay in your store—you have to ask them to leave. You'll learn more about how to do this later on in this module.

Preventing the Sale of Cannabis to Minors

Let's imagine that you're assessing a patron who doesn't look intoxicated but could be underage.

You know you have a legal obligation to prevent the sale of cannabis to minors and you could face significant penalties⁷ if this obligation isn't met. So, what do you do?

The best way to avoid accidentally selling cannabis to a minor is to ask for two pieces of ID and check them carefully. It's also helpful to post signs at all entrances stating that minors are not allowed to enter.

⁷ The minimum penalty for a cannabis store licensee that allows a minor into a store is a 3-day licence suspension or a \$3,000 fine. The minimum penalty for selling cannabis to a minor is a 7-day licence suspension or \$7,000 fine.



Patrons must be **at least 19 years old to enter a cannabis store**. You are under no obligation to allow entry or provide service if you are in doubt about a person's age. It's up to the patron to provide acceptable proof of their age.

ID Requirements in B.C.

Two pieces of acceptable ID are required in B.C. to verify age. The first piece of ID (primary ID) must be issued by a government agency and must include the patron's name, birth date and picture.

Examples of acceptable primary ID include

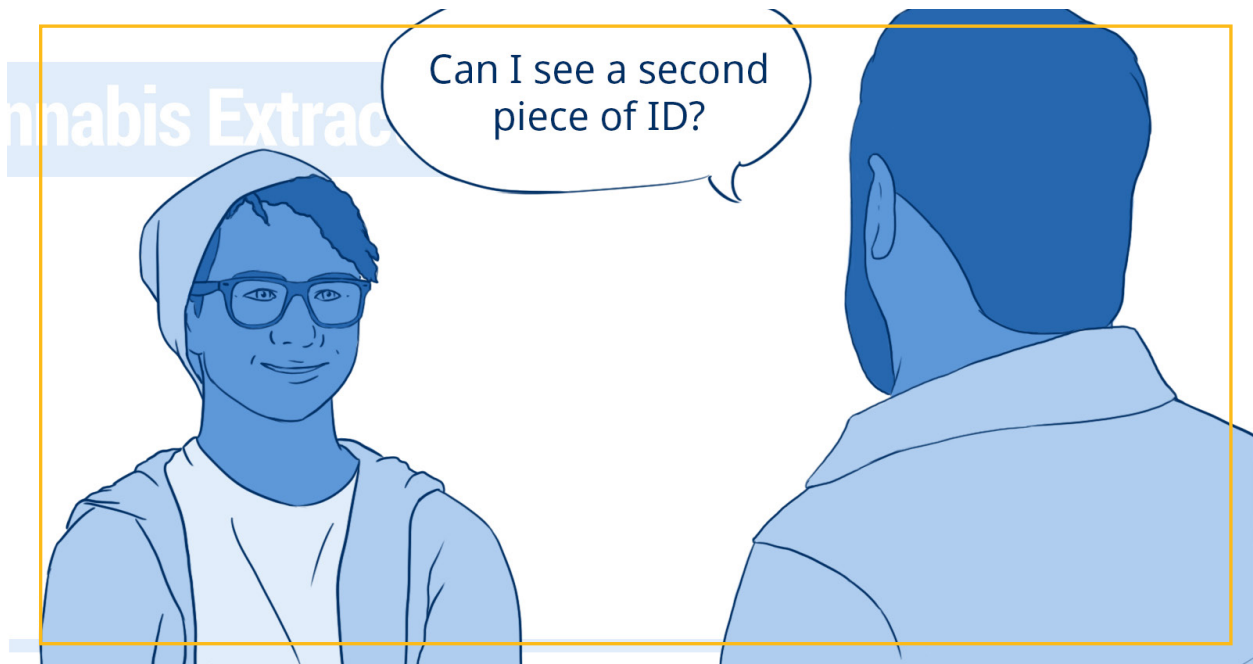
- Driver's licence (including out-of-province)
- Passport
- Citizenship card
- Certificate of Indian Status
- Federal Firearms Possession and Acquisition License (PAL)

You can accept expired or foreign ID, as long as it is readable, you can recognize the patron from the picture.

The second piece of ID is required to verify the authenticity of the first piece of ID. It must include

- The patron's name
- The patron's signature or picture

Acceptable secondary ID may include credit cards, bank cards, university or college student ID cards, interim driver's licences (issued by ICBC), BC Transit ProPASSes, Canadian Blood Services donor cards, Transport Canada's Pleasure Craft Operator's Cards, rewards cards or other ID that include the patron's name and either the patron's signature or the patron's picture. Any examples of primary ID can also be used as secondary ID.



Verifying ID

Check each piece of ID carefully. Make sure the information on both cards matches. Hold the ID in your hand. Don't let the patron just flash them at you.

You need to answer two questions:

1. Do you believe that the person in front of you is the owner of this ID?

Compare the patron to their photo. Hairstyles and colours (and even eye colours) can be changed easily, so look at facial features like the height and positioning of cheekbones and the spacing between the eyes. Height and weight information are worth checking as well.

2. Do you believe the ID is authentic?

See if the ID is a copy of the real ID. Check various security features⁸ and make sure they all appear authentic. Counterfeiters might be able to replicate some—but usually not all—of these features.

⁸ See [Appendix C](#) for more information on the enhanced security features of the British Columbia Driver's Licence and Services Card.

If something seems off, or if you don't think the ID is authentic, you can follow up with some of the strategies outlined below.

Look for signs of tampering.

If the card is in a plastic sleeve, wallet or purse, ask to have it removed. Look for wrinkles, bubbling or peeling. Run your fingers over the card's face and edges to check that the seals are intact. Note unusual raised or bumpy surfaces or uneven edges. Be especially vigilant around the date of birth and photo. Consider the thickness of the ID. Does it seem multilayered? That could be a sign of after-issue lamination. Ensure the typeface is consistent throughout.

Check the reverse side. Counterfeiters will often spend a disproportionate amount of time on the front of a fake ID but merely photocopy the back. Look for blurred lettering or out-of-focus words or images.

Make sure the ID is authentic

If out-of-province ID is presented, it's good to have a current book of valid IDs close at hand. There are references available that show examples of valid North American IDs. Have a copy at the door and a backup copy stored in the office. If you are not sure of an ID's authenticity, you must refuse entry and sale to that individual.

Ask the patron to verify the signature

If you suspect an ID to be false or tampered with, ask the patron to verify their signature by signing and dating a piece of paper. Compare their writing to the ID.

Watch body language and behavior

Look for signs of nervousness. Darting eyes and fidgeting may be signs that someone is trying to pass off a fake ID. Is the patron being flirtatious or acting overly friendly? Avoid distractions and scrutinize the ID.

Talk to the patron

Make eye contact. Ask them some questions about the information on their ID. For example, you could ask about where they live, their postal code, their height, how they spell their middle name, etc. There should be no hesitation in answering any of these questions.

Take a look at the ID shown below. Why isn't it valid as a primary ID? What's missing?



[Check your answers on p. 62.](#)

Here's another question for you. Can you spot the differences between the fake ID on the top, and the real ID on the bottom?



Check your answers on p. 62.



When you think a patron might be under 19, and they cannot produce acceptable ID or you have concerns about the authenticity of the ID, you cannot sell them cannabis. You must return their ID and ask them to leave your store.

Preventing Others from Purchasing Cannabis for Minors

Let's say you've verified that a patron is of legal age. Before making the sale, you still need to answer one more important question: Do they appear to be purchasing cannabis for someone who isn't allowed to purchase it themselves?

You are responsible for making sure that cannabis is not sold or given to minors or anyone who appears intoxicated. Keep an eye out for activity that indicates patrons are purchasing for minors.

Be wary of more than one purchase or attempted purchase of the same product within a few minutes. For example, a minor without valid ID is refused service, and then another patron is purchasing the same products that the minor had attempted to buy a few minutes earlier.

If you suspect or have knowledge of a patron who appears to be purchasing cannabis for a minor (or someone who is intoxicated), **you must refuse the sale and ask them to leave.**

Asking a Patron to Leave

You're faced with a patron who is either intoxicated, unable to provide acceptable proof of age or appears to be buying for a minor or an intoxicated person. Now you must ask them to leave.

Asking a patron to leave can be awkward and difficult, especially if you know them or if you think they might become angry or aggressive. If your cannabis store has an establishment policy, it may be helpful to practice the procedures before you have to use them.

Remember, every situation will be different. Be sure to modify the procedures to fit the context. Here is an example of steps you might take.

1. Assess the situation

Take a moment to assess the seriousness of the situation. If at any time you think you might need help, tell your supervisor and/or another staff member.

2. Create a plan to speak to the patron

Before you speak to the patron, be prepared. Understand your legal responsibilities and any applicable establishment policy and procedures, as you may be challenged. Be prepared for escalating circumstances too. Role-playing these difficult scenarios in advance can be helpful.

3. Execute the plan quickly, firmly and fairly

Speak to the patron as soon as possible. Be discreet to avoid embarrassing them.



4. Choose your words carefully

Be calm and polite. Acknowledge the patron's anger, frustration and/or disappointment. Avoid threatening statements or judgmental comments. Explain your position and responsibilities. Cite the law or your establishment policy, if you have one. Use closed statements rather than questions. Avoid arguments and do not bargain.

5. Stay in the room

Unless there's a risk to your safety, stay within the line of sight and earshot of the patron until they have left.

If at any time a patron threatens the safety of staff and other patrons in the store, you must notify the police as soon as it is safe to do so. You must also call the police if someone returns to the store after being denied entry or asked to leave within the past 24 hours.

Recording Incidents

Anytime an incident occurs, you must record it in your incident records, which are subject to review by Liquor and Cannabis Regulation Branch inspectors or police officers. Incident records are critical because

- They may be used as evidence in an investigation, hearing or court case
- They allow important information to be shared with managers and staff

What counts as an incident? Here are some examples:

- Refusing entry at the door to a person who is causing or could cause a disturbance
- Refusing entry to an intoxicated person or minor
- Removing an intoxicated person or minor
- An injury or accident on the premises, including a fight
- An injury or accident occurs while a licensee or their employee is delivering cannabis
- Any instance where fire, police or ambulance are called
- Any illegal act

Here are three tips for recording incidents effectively:

1. Establish a system

Staff should report any incident directly to their manager. Staff should complete statements about how and when the incident occurred, when requested. The manager on duty should also seek contact information from any other witnesses and, if possible, obtain statements from them about the incident. These statements should be as detailed as possible.

Since witnesses' memories of the incident will fade over time, their statements should be gathered and recorded as quickly as possible. All incident records must be preserved for at least six years.

2. Keep incident records together

Staff should keep records of incidents, such as having to refuse service to a minor, all in one place. The incident records can also list the names and descriptions of people who were refused service or asked to leave in the past for causing disturbances.

Keeping incident records together will make it easier to identify persistent issues and may encourage management to review policies from time to time. Accurate and complete incident records, together with sales slips, can support a claim of due diligence.



3. Capture a detailed account of the incidents

As soon as an incident has been resolved (for example, an intoxicated patron has left the premises), management should check that the key details are captured and all associated sales records preserved. Details should include

- the time, place, date and nature of the incident
- a description of the people involved
- what action was taken and why
- the names of any witnesses
- any other pertinent information

Managers should use the entries⁹ as a learning tool and debrief staff after all incidents. This gives managers the opportunity to improve procedures and establishment policies, and to praise or correct staff performance.

⁹ See [Appendix D](#) for a sample of the information that should be included in an incident report.

Review and Application

Review Questions

Question #1

Why is a written establishment policy useful?

Select all that apply.

- a. It facilitates responsible selling.
- b. It is required by B.C. cannabis control laws and regulations.
- c. It supports the safety of patrons and staff.
- d. It helps protect your cannabis store from enforcement action.

Question #2

A patron walks into your store. You promptly greet them and strike up a conversation. They don't appear to be intoxicated or underage. What other possible circumstance listed below would require you to refuse a sale?

Select the correct answer.

- a. The patron discusses their medical condition that could be impacted by cannabis
- b. The patron tells you about their intended method of cannabis consumption
- c. The patron indicates that they intend to purchase cannabis and give it to a minor

Question #3

Which of the following forms of identification are acceptable as primary or secondary ID?

Select all that apply.

- a. Nova Scotia driver's licence
- b. Canadian passport
- c. Credit card
- d. B.C. driver's licence that expired 6 months ago
- e. Certificate of Indian Status

Question #4

You believe a patron is under 19, so you ask to see two pieces of ID. You suspect that the first piece of ID is not legitimate, but you're unsure. The patron gives you a credit card as secondary ID. What should you do?

Select all that apply.

- a. Agree to sell the patron cannabis because the credit card has the patron's signature.
- b. Refuse to sell the patron cannabis if they cannot produce legitimate primary ID.
- c. Ask the patron for a different piece of primary ID.
- d. Refuse to sell the patron cannabis, retain the ID, and call the police.
- e. Agree to sell the patron cannabis after their friend with valid B.C. ID vouches for the patron.

Question #5

An intoxicated patron has entered your store. What should you do next?

Match each step with the appropriate course of action.

- | | |
|---------------|---|
| Step 1 | a. Ask the patron to leave, citing the law or policy. |
| Step 2 | b. Record the incident. |
| Step 3 | c. Assess the situation. Is there a safety threat? |
| Step 4 | d. Make sure the patron leaves safely. |
| Step 5 | e. If there is a safety threat, notify the police as soon as it is safe to do so. |

Question #6

Which of the following statements about recording incidents are true?

Select all that apply.

- a. Recollections of the incident should be gathered from all staff and witnesses who were present at the time.
- b. Seek contact information from other witnesses to the incident, such as patrons and bystanders.
- c. You can discard the incident record after five years.

Check your answers on p. 63.

Scenario

Sylvia, a staff member at a cannabis store, is working when Kelsey enters the store. Kelsey approaches a display case—she appears nervous.

SYLVIA: Hi there—how are you today?

KELSEY: Pretty good. I'm just looking for some cannabis oil.

SYLVIA: I see. Can I see some ID?

KELSEY: Yes.

Kelsey fumbles with her wallet and hands over a piece of ID. Sylvia looks it over. She's skeptical that it is Kelsey's ID.

Sylvia has a decision to make—what do you think she should say? Should she ask what type of cannabis Kelsey is looking for, or ask to see a second piece of ID? Sylvia knows that two pieces of acceptable ID are required to verify age.

SYLVIA: Thank you—can I see another piece of ID?

KELSEY: Umm—well, I don't really have anything else.

SYLVIA: I'm sorry. I can't sell you cannabis unless I see a second piece of ID.

KELSEY: Seriously? Ugh. Whatever.

Upset, Kelsey leaves the store. A couple of hours pass. Two patrons, Amanda and Steven, walk into the store, laughing loudly. Amanda is a bit unsteady on her feet. She walks up to Sylvia.

AMANDA : Have you tried the cocktails over there? Their mojitos are insaaane! Hey, do you have anything sort of minty flavoured? That would go so well with mojitos! Right, babe?

Amanda is slurring her words.

STEVEN: Uh, yeah—that would be good! What are our options?

Sylvia has another decision to make—what do you think she should say? Sylvia knows she can't sell cannabis to intoxicated patrons. She isn't even allowed to let intoxicated patrons remain in the store.

SYLVIA: I'm sorry, but I can't sell you any cannabis this evening.

AMANDA: What? Why not?

SYLVIA: It's against the law for me to sell to anyone who appears to be intoxicated. I'm going to have to ask you to leave today, but you are welcome to come back some other time.

STEVEN: Hey, look—I know she's hammered, but I'm fine. How about you just sell me some? She can wait outside.

SYLVIA: Sorry, I can't do that. I need you both to leave, please.

AMANDA: Ugh. Fine. Whatever. Let's get some more of those mojitos.

Sylvia followed proper ID procedures and refused to sell to someone who could not provide sufficient ID, and then refused to sell to an intoxicated patron. All that's left for Sylvia to do is write up a thorough record of the incident!

Reflection

Here are some questions to ask yourself when you start working:

- Do we have an establishment policy at this store?
- Do I know how to properly assess ID?
- Do I know how to handle issues with underage or disorderly patrons?
- Am I familiar with the steps for refusing a sale and asking a patron to leave? Have I practised effective dialogues for these situations?
- Do I know where the incident records are located, and how to fill them out properly?

Recap

You are required to sell cannabis responsibly. You have to follow establishment policies, know when and how to assess patrons and know how to verify ID to avoid selling to minors.



Congratulations! You've reached the end of this module!

Appendix A: Answers to Module Questions

Module 1

p. 10: Consuming cannabis is **risky** when pregnant or breastfeeding and when consuming alcohol or other drugs (including medication). Consuming cannabis is **risky and illegal** when underage (under 19 years old) or operating a motor vehicle.

p. 15:

1. The correct answer is **a**. Consuming cannabis products on their own is less risky than consuming cannabis products with alcohol.
2. The correct answer is **b**. Consuming edible cannabis products is less risky than smoking cannabis if the amount is equivalent.
3. The correct answer is **a**. Beginning cannabis use at age 30 is less risky than beginning cannabis use at age 20.
4. The correct answer is **b**. Consuming cannabis once a week is less risky than consuming cannabis daily.
5. The correct answer is **a**. Consuming cannabis with low levels of THC is less risky than consuming cannabis with high levels of THC

Review Questions

1. The correct options are **a, b, and d**. Long-term, frequent cannabis use can result in impaired memory and decision-making skills, especially when it starts at an early age. Long-term and even short-term cannabis smoking can cause lung problems. Long-term cannabis use is associated with increased risk of depression and anxiety. The likelihood of mental health problems is greatly increased when there is a family history of psychosis.
2. The correct answer is **c**. The human brain is still developing until around age 25. Emerging evidence suggests that early, frequent cannabis use may increase the risk of harms to the brain, which may not be reversible.

This is why cannabis use is risky when pregnant or breastfeeding—it can be transferred to the baby in the womb or through breast milk, potentially resulting in health problems that may impact the baby's development.

3. The correct options are **a and c**. Cannabis use can decrease a driver's awareness of their surroundings and their ability to track moving objects (like other vehicles and pedestrians) and respond quickly to changes.

4. The correct options are **a, b, c, and e**. The following are signs of intoxication:

- Bloodshot, glassy, or watery eyes
- Overly friendly or aggressive behaviour
- Very slow or very fast speech
- Swaying, staggering, or stumbling

Motor skills and coordination do not improve with the use of cannabis, alcohol or other intoxicants—instead, you will likely see clumsier, less coordinated movements.

When assessing a patron for potential intoxication, look for multiple signs. Pay attention to their physical appearance, attitude, speech and behaviour. Compare your observations to how you would expect a sober person to appear and act but remember that some medical conditions or disabilities can produce signs or symptoms that look similar to intoxication.

5. The correct options are **a, b, and c**. People who consume cannabis can reduce health risks by limiting the frequency of their consumption, choosing non-inhaled consumption options and choosing low THC products, among other things.

Module 2

p. 29:

1. The correct answer is **b**. Cannabis must be sold in its original, unopened packaging, at a price no lower than the price paid to the Liquor Distribution Branch or the Liquor Distribution Branch's current wholesale price, whichever is lower.
2. The correct answer is **b**. Although gift cards can be worth up to \$300 each, a cannabis store cannot sell more than \$300 in gift cards in a single day to the same patron.
3. The correct answer is **a**. Cannabis stores may sell accessories used directly or indirectly in the consumption of cannabis, such as rolling papers, lighters, and grinders.
4. The correct answer is **b**. The sale of liquor is not allowed in cannabis stores.

p. 32:

1. The correct answer is **b**. Patrons must always be assisted by a staff member. Products must not be accessible to patrons.
2. The correct answer is **b**. Cannabis and cannabis accessories must not be visible to minors from outside the store. This store does not meet that requirement.
3. The correct answer is **a**. At least one social responsibility poster must be prominently displayed in the store. These posters are provided by the Liquor and Cannabis Regulation Branch.

Review Questions

1. The correct options are **a, b, c, d and f**. The responsibilities of people involved in the sale of cannabis in B.C. are described in the Cannabis Control and Licensing Act, Cannabis Control Regulation, Cannabis Licensing Regulation, the Cannabis Retail Store Licensee Handbook and the Producer Retail Store Licensee Handbook.
2. The correct answer is **b**. Cannabis must not be consumed in the store by anyone at any time.
3. The correct options are **b and c**. Cannabis in opened packaging must be kept on site in a locked storage area.
4. The correct options are **a and c**. A patron cannot purchase more than \$300 in gift cards in a single day. You must not sell gift cards to minors. If you think a patron could be under 19, request two pieces of valid ID to verify their age. Gift cards can be worth up to \$300 each and can be redeemed at the licensed cannabis store or on a licensee's online system. They cannot be used at a non-cannabis business.
5. The correct answer is **b**. The cannabis register is a way to account for all cannabis present in a cannabis store. Inspectors or police officers should be able to easily determine whether or not the cannabis in a store was lawfully purchased.

Module 3

p. 43: The correct options are **a, c, and d**. Greeting patrons as they come in and striking up a conversation with them can give you an opportunity to identify patrons who shouldn't be allowed in the store. For example, you can assess their age and decide if you need to ask to see some ID. You can also check for any signs of being intoxicated by alcohol, cannabis or other drugs. Finally, you can get a sense of whether a patron might pose a safety threat. Be alert to any risk of violent or disorderly conduct. Remember, weapons must not be brought into the store.

p. 49: In addition to a clear photo of the patron, acceptable primary ID must be government-issued and include the patron's date of birth.

p. 50: The fake ID has these clues:

- "DRIVER'S LICENSE" should be spelled "DRIVER'S LICENCE"
- B.C. driver's licences must have a B.C. address, but this address is from Saskatchewan
- The year of birth should be printed over the bottom of the small photo on the right
- The word "and" at the top of the card should be lowercase and italicized

Review Questions

1. The correct options are **a, c, and d**. A written establishment policy is not required by law, but it supports the safety of patrons and staff and may help protect you and the retail store from enforcement or legal action. When properly communicated and enforced, the establishment policy is a tool that can help staff sell responsibly.
2. The correct answer is **c**. Even if you've established that a patron is not intoxicated or underage, you still might need to refuse the sale for some other reason. For example, if a patron indicates that they intend to provide cannabis to a minor, you cannot sell cannabis to them.
3. The correct options are **a, b, d, and e**. The following are acceptable as primary or secondary ID: an expired driver's licence, a Canadian passport, a Certificate of Indian Status and a driver's licence from any jurisdiction.

A credit card is acceptable as secondary ID only. University and college ID cards are acceptable as secondary ID only.

4. The correct options are **b and c**. If you have any concerns about the authenticity of the ID, you may ask for an additional piece of ID. If a patron is unable to provide valid proof of their age, or if you have doubts as to whether they are 19 or older, you must refuse the sale and ask them to leave.
5. The correct steps in order are **c, e, a, d, then b**. If a patron appears to be intoxicated, your next action should be to assess the safety of the situation. Persons exhibiting signs of intoxication must not be allowed to enter or remain in the store. Even if they are not acting in a threatening manner, if you believe they are intoxicated, you must still ask them to leave. If they appear to be carrying a weapon or threatening people's safety in any way, notify the police as soon as it is safe to do so. When you ask them to leave, don't make it personal. Tell them that you have to do this because it's the law. Once they have left the store, create a detailed record of the incident.
6. The correct options are **a and b**. Take statements from all staff who were present, not just those immediately involved. Their recollections may be useful to the cannabis store, insurers, or legal proceedings. You must keep incident records for a minimum of six years.

Appendix B: Establishment Policies

Developing an Establishment Policy

An Establishment Policy (the Policy) provides licensees, managers and staff with the procedures and practical tactics to be used in different situations. The Policy is not required by law, but it can help you succeed in meeting your legal obligations and in selling cannabis safely and responsibly.

The Policy can also help team members understand their specific roles and responsibilities for ensuring responsible cannabis sales. The Policy should be implemented and enforced by all personnel, including licensees, managers and staff.

Assessing risks in your establishment

You need to tailor the Policy to the specific risks and circumstances of your establishment. The following questions will help you identify and assess common risks associated with cannabis sales that may need to be addressed in your Policy.

While reviewing the questions, think about where your current Policy may be lacking or require updating. How often do you and your staff check the Liquor and Cannabis Regulation Branch website for recent policy changes? Do your staff have a way to easily access relevant legislation and the terms and conditions for your licence?

Also, consider the risks that are unique to your establishment. What could you do to limit or control these risks? You may consider contacting your local Liquor and Cannabis Regulation Branch inspector for their perspective on the risks in your establishment.

Topic	Status ✓ = OK NP = Need policy UP = Update policy
-------	---

Minors

Do your staff understand that entry to minors must be refused? For example, do your policies require signage at the entrance to the store indicating that minors are not permitted?	
Do your policies ensure that all patrons who look like they may be under 19 are asked for ID?	
Do staff and managers receive regular training to recognize acceptable Primary and Secondary ID?	
Do staff and managers receive regular training to recognize fake ID?	
Do your policies help staff and managers identify when a patron may be purchasing cannabis for a minor? Do your policies advise staff and managers on how to manage these situations?	

Intoxication

Do staff understand they cannot sell cannabis to intoxicated patrons ?	
Do staff understand they cannot allow an intoxicated patron to enter or remain in the establishment?	
Do staff and managers receive regular training to recognize the signs of intoxication?	
How do your policies support staff and managers in assessing patrons for signs of intoxication as they arrive?	
Do your policies support staff members to assess patrons for intoxication and refuse entry if necessary?	
Do you inform patrons about your policy for refusing entry? For example, do you put up notices? Where in your establishment do you place these?	

Topic	Status ✓ = OK NP = Need policy UP = Update policy
Do your policies ensure that another team member is available to assist in managing situations where a patron is intoxicated?	
Are your policies clear on when staff should consider calling the police?	

Sales

How do your policies ensure that staff do not sell more than the maximum possession amount to patrons?	
Do you have policies about management of smell jars and touch jars, including display, storage, and security?	
Do you have policies about storage, disposal, and tracking of cannabis inventory?	
Do your policies ensure that cannabis and cannabis accessories will not be visible from outside the store?	
Do your policies ensure that cannabis and cannabis accessories are not accessible to patrons inside the store?	

Creating a safe environment

Do you have policies to manage the removal of a patron, or the denial of entry to a patron? For example, are staff trained in the use of appropriate language to ensure situations do not escalate?	
Are staff aware of the store's measures for preventing disturbances? For example, are staff aware of outside lighting, signage, locks, alarms, and other safety measures?	
Are staff trained on preventing disturbances, including violent and disorderly conduct, in the store?	
Do you have policies about when and how incident records are to be completed?	

Topic	Status
	✓ = OK NP = Need policy UP = Update policy

Training staff

Do you provide all staff members with a copy of establishment policy and have them sign off on it?	
Do staff know where to find information (e.g., floor plan, licence, incident records, etc.) in the event that the manager isn't available?	
Have you given staff guidelines for recognizing intoxication?	
Are staff trained to effectively enter information into the incident records?	
Do you have systems in place to ensure staff are continually updated on new or revised policies?	
Do you have regular, mandatory staff meetings to discuss policies and their enforcement?	
Do staff know what information they must provide to LCRB inspectors or police and how to provide it when it is requested?	

Guidelines for writing policies

Now it's time to write your policies based on what you noted on the previous pages. Your success in promoting the responsible sale of cannabis will depend on how clearly your Establishment Policy is written and communicated to your staff. Here are some guidelines to consider before you start:

- Prepare a list of all the policies you think your establishment may need.
- Write policies and procedures that are positive, simple and easy to follow.
- Get staff input on policies on an ongoing basis.
- Refer to your incident records to alert you to any areas that may need to be reviewed.

Sample Establishment Policies

Two sample formats for Establishment Policies are shown below. The first is a chart that shows one policy for the establishment, indicating who will enforce the policy and the methods of enforcement. This could be expanded into a chart containing all establishment policies.

The second sample format shows the same policy and a more extensive written procedure for employees of that establishment to follow to ensure that policy is met. This could be expanded into a written procedure for each policy needed for your establishment. You can choose the format that best suits your staff and establishment.

Two sample policies are included here: one on identifying minors and a second on preventing intoxicated patrons from entering the premises.

These samples are only guidelines. Consult your insurance company or legal counsel to ensure you have adequately addressed all risks.

Sample policy #1A: Minors

Policy	Who will Enforce	Methods of Enforcement
Minors: No one under the age of 19 will be allowed on the premises or will be sold cannabis or other products on the premises.	◦ Manager ◦ Front counter staff	◦ Ask for two pieces of ID from anyone who looks under the age of 19. ◦ Compare ID to samples of acceptable forms such as valid BC Services Card, driver's licence, passport, or B.C. Identification Card. ◦ Check for alterations to ID by feeling and observing—use a flashlight from behind. ◦ Compare signature of patron to the signature on the ID. ◦ Ask the patron to leave if you suspect the ID is invalid or false. Be polite but authoritative.

Sample policy #1B: Minors

Policy: ID Underage Patrons

Policy Statement:

No one under the age of 19 will be allowed on the premises.

Procedure:

1. Management will post a notice at the entrance stating that the establishment will ID anyone who looks under 30 years of age.
2. Front counter staff (or manager) will ask for two pieces of ID from anyone who looks under 30 years of age:
 - i. First piece, issued by a government agency, should include the person's name, signature, birth date and picture (BC Services Card, driver's licence, passport)
 - ii. Second piece must include an imprint of the person's name plus their signature and/or picture (credit card, bank card, university or college student ID cards, CareCard)
3. Staff will feel and observe the document to ensure it is valid. If unsure, verify the information by asking the patron their age, date of birth, and height.
4. Staff will check the binder at the front desk to review acceptable forms of ID if in doubt.
5. Staff will refuse service if fake or invalid ID is suspected. When refusing service staff will:
 - Be sure to have a back-up co-worker ready to help or get help
 - Do so in a polite but authoritative manner
 - Speak to the person privately
 - Tell the person "I'm sorry, but it is against the law for me to let you in/serve you."
6. Staff will alert management if the person does not want to leave or if the situation has the potential to get out of control.

Sample policy #2A: Refusing entry to intoxicated patrons

Policy	Who will Enforce	Methods of Enforcement
Entry of Intoxicated Patrons: Intoxicated patrons will not be permitted entry to the premises.	◦ Manager ◦ Front counter staff	◦ Greet patrons when they enter the premises. ◦ Assess their level of intoxication. ◦ Identify a back-up co-worker to support you if a patron must be refused entry. ◦ Refuse entry to patrons showing signs of intoxication. Be polite but authoritative. ◦ Advise that it is against the law to sell cannabis to them. ◦ Avoid any confrontation, either verbal or physical. ◦ If necessary, call a manager for support.

Sample policy #2B: Refusing entry to intoxicated patrons

Policy: Refusing entry to intoxicated patrons

Policy Statement:

Intoxicated patrons will not be permitted entry to the premises.

Procedure:

1. Staff will observe behaviour of patrons upon entering the premises for signs of intoxication, question patrons, look out for patrons who appear to be staggering or slurring their words, and watch for patrons who are acting in a rude or otherwise obnoxious manner.
2. Upon observing any signs of intoxication, staff will advise the patron that they are unable to allow entry. When refusing entry, staff will:
 - i. Be sure to have a back-up co-worker ready to help
 - ii. Do so in a polite but authoritative manner
 - iii. Speak to the person privately and discreetly
 - iv. Tell the person, "I'm sorry, but it is against the law for me to let you in."
3. Staff will alert management if the person does not leave or if the situation looks like it has the potential to get out of control.

Appendix C: Enhanced Security Features of the British Columbia Driver's Licence and Services Card

Some of the enhanced security features of the British Columbia Driver's Licence and Services Card include

- **An optical variable device** – a stamped, holographic foil featuring a whale, the provincial coat of arms and the provincial logo
- **Micro and rainbow printing** – a printing that is visible only under a magnifying glass and written in a unique pattern
- **Ultraviolet designs** – these designs only appear under a black light
- **A magnetic stripe** – this stripe contains the same information as printed on the identification card. Card readers are available to scan this information
- **Barcodes** – these codes cannot be altered and unique numbers are assigned to each card
- **Laser engraving and raising of features** – the cardholder's image and signature are tactile and discourage counterfeiting
- **Ghosted images** – the cardholder's image is "ghosted" at a different depth from the primary photo
- **Polycarbonate cardstock** – these are more tamper-resistant and durable than plastic-laminated cards; they make a tinny or metallic sound when dropped
- **Elaborate graphic designs** – a B.C. mountain range, the Steeples and the Kootenay River are featured on the B.C. Driver's Licence. An orca appears on the B.C. Identification Card
- **Larger type** – the cards include a larger typeface to ease inspection
- **Additional text found on B.C. Learner's (L) and Novice (N) type licences** – The date the card holder will turn 19 is placed prominently to make it easy to verify legal age

Appendix D:

Incident Record Sample

Date: April 3, 2018	Time incident occurred: 11:29 am / pm
Weather: Sun / Clouds / Wet / Dry / Snow / Wind	

Customer details

Name: Tina S _____	Sex: Male / Female	Birth date: October 15, 1963
Age: 19-25 / 26-30 / 31-35 / 36-40 / 41-49 / 50-59 / 60-65 / 66+		Height: 5' 7"
Weight: 170 lbs.	Eye colour: Blue / Brown / Green / Grey / Unknown	Glasses: Yes / No
Facial hair: Moustache / Beard / Goatee / Other: None		
Hair colour: Blonde / Brown / Black / Grey / Other: Reddish Brown		
Hair length: Short / Mid / Long Details:		
Clothes: Pink top, black velvet jacket, black pants		Other: n/a
Was the person alone? Yes / No / Don't know	If no, name of person they were with? Alice T _____	
Were staff familiar with the patron and/or accompanying patrons? Yes / No / Don't know		
Why/how were they familiar?		

Denial of entry (circle one)

Reason: Intoxicated / Minor / Troublesome / Dress code / No ID / False ID / Previously barred / Other:

Refusal of service / Removal from premise

Reason: Intoxicated / Troublesome / Minor / Other:	
Names of all staff who served patron: Jennifer R _____	
Refusal by whom? Jennifer R _____ and Robert B _____	Was the patron removed from the premises? Yes / No
Names of all staff involved in removal: Robert B _____ and Steve H _____	
Did all staff removing the patron possess security certificates? Yes / No	

Injury / accident

What happened?	
What part of the body was affected?	
First aid administered by staff? Yes / No	If yes, describe:
Emergency services attended? Yes / No	Was hospitalization required? Yes / No
How did the patron contribute to their injury?	
If trip or fall, condition of the floor and any foreign substances detected:	
Are photos available of the area? Yes / No	If altercation, were the patrons involved separated? Yes / No

Minor on premise

Was ID checked? Yes / No	If yes, by whom?
If yes, indicate type of ID: BC Services Card / Driver's License / BCID / Passport / Military ID / Other:	

Police

Time of call:	am / pm	
Time of patron's departure:	am / pm	Time of officer's arrival: am/pm
Name of officer(s):	Badge number(s):	
Were police provided any documents? Statements / Receipts / Video / Other:		

Witnesses (if possible obtain for at least 2 witnesses)

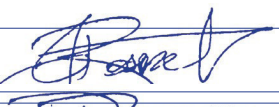
Witness #1 name: Shane J _____	Witness #2 name: Maureen S _____
Address: 123 Main St., Vancouver BC V0V 0V0	Address: 567 First St., Vancouver BC V1V 1V1
Telephone: 604-555-5555	Telephone: 778-555-5555

Detailed description of incident (Include any relevant details of a sale made; recommend attaching copy of staff schedule for that day)

At 10:30 pm Tina S and Alice T entered the establishment. Tina was unsteady on her feet and slurring her words. She said they were coming from a bar. Jennifer refused sales to Alice who asked to speak to a manager. Robert also refused service and asked them to leave. Steve followed them to the exit. Alice + Tina left at 11:37 pm.

All appropriate steps have been taken: Yes / No	
All evidence has been retained? Statements / Receipts / Video / Other:	
Manager notified: Yes / No	If yes, name of manager: Robert B _____
Insurance company / broker contacted? Yes / No	Date contacted:

We, the undersigned affirm that all the information recorded herein is factual, accurate and complete regarding the circumstances surrounding the incident.

Print name: Jennifer R _____	Signature: 	Position: Clerk
Print name: Robert R _____	Signature: 	Position: Manager